

Bruce Turnbull
on behalf of
DVD CCA and AACS LA

Before the
United States Copyright Office
Library of Congress
Washington, D.C. 20559

In the Matter of:

Section 1201 Study

Docket No. 2015-8

**JOINT ADDITIONAL COMMENTS OF THE DVD COPY CONTROL
ASSOCIATION AND THE ADVANCED ACCESS CONTENT SYSTEM
LICENSING ADMINISTRATOR, LLC**

1. Proposals for New Permanent Exemptions

**a. Assistive Technologies for Use by Persons Who Are Blind, Visually
Impaired, or Print Disabled.**

[Text of the Request Omitted]

RESPONSE

DVD CCA and AACS LA have no additional comments at this time.

b. Device Unlocking.

[Text of the Request Omitted]

RESPONSE

DVD CCA and AACS LA have no additional comments at this time.

c. Computer Programs. Several commenters expressed concern over the scope of section 1201 in the context of copyrighted computer programs that enable the operation of a machine or device. These commenters suggested that by prohibiting the circumvention of access controls on such programs, the statute prevents the public from engaging in legitimate activities, such as the repair of automobiles or the use of third-party device components, that seem far removed from the protection of creative expression that section 1201 was intended to address. . . . To respond to this concern, some commenters argued that Congress should establish a statutory exemption that would permit circumvention of technological protection measures (“TPM”s) controlling access to such software in appropriate circumstances. . . . To what extent would the combination of such an exemption with the current language of 1201(f) 12— which allows circumvention for purposes of facilitating interoperability under certain circumstances— adequately address users’ concerns regarding section 1201’s impact on consumer activities?

RESPONSE

DVD CCA and AACS LA again caution that any amendment should not come at the expense of weakening the DMCA and its effectiveness in protecting core copyright interests. As DVD CCA and AACS LA have previously stated – and as is evident by even a casual look at today’s digital marketplace – the existing legal system, including specifically the DMCA circumvention protections, have enabled a burgeoning market for audiovisual content, delivered through many platforms to numerous types of devices. To the extent that DMCA circumvention issues have arisen outside of core copyright areas, courts thus far have declined to apply section 1201 in a way that would lead to the results suggested by some commenters as identified by the Copyright Office. *See, e.g., Chamberlain Group v. Skylink Tech., Inc.*, 381 F. 3d 1178 (Fed. Cir. 2004); *Lexmark Intern. v. Static Control Components*, 387 F. 3d 522 (6th Cir. 2004). DVD CCA and AACS LA must therefore insist that any recommendations from the Copyright Office retain the critical circumvention protections for core copyright interests and avoid making any changes, which would risk weakening the legal structure supporting the digital marketplace.

d. Obsolete Technologies.

[Text of the Request Omitted]

RESPONSE

DVD CCA and AACS LA have no additional comments at this time.

e. **International Considerations.**

[Text of the Request Omitted]

RESPONSE

DVD CCA and AACS LA have no additional comments at this time.

2. **Proposed Amendments to Existing Permanent Exemptions**

Some parties expressed the view that the existing permanent exemptions for security testing, encryption research, and reverse engineering¹⁹ do not adequately accommodate good-faith research into malfunctions, security flaws, and vulnerabilities in computer programs.²⁰

[Text of the Request Omitted]

a. In the 2015 rulemaking, the Register recommended, and the Librarian of Congress adopted, an exemption that permits circumvention of TPMs controlling access to computer programs in the following circumstances:

(i) . . . the circumvention is undertaken on a lawfully acquired device or machine on which the computer program operates solely for the purpose of good-faith security research and does not violate any applicable law, including without limitation the Computer Fraud and Abuse Act of 1986, as amended and codified in title 18, United States Code; . . . and the device or machine is one of the following:

(A) A device or machine primarily designed for use by individual consumers (including voting machines);

(B) A motorized land vehicle; or

(C) A medical device designed for whole or partial implantation in patients or a corresponding personal monitoring system, that is not and will not be used by patients or for patient care.

(ii) For purposes of this exemption, “good-faith security research” means accessing a computer program solely for purposes of good-faith testing, investigation and/or correction of a security flaw or vulnerability, where such activity is carried out in a controlled environment designed to avoid any harm to individuals or the public, and where the information derived from the activity is used primarily to promote the security or safety of the class of devices or machines on which the computer program operates, or those who use such devices or machines, and is not used or maintained in a manner that facilitates copyright infringement.²¹

The Office is interested in commenters' views on whether this language would be appropriate for adoption as a permanent exemption, or whether there are specific changes or additional provisions that Congress may wish to consider.

RESPONSE

DVD CCA and AACS LA believe that the adoption of this particular exemption as a permanent exemption is unwarranted. DVD CCA and AACS LA have objected to the creation of any new statutory exemptions, in part, because any new statutory exemptions based on those previously created as a result of the rulemaking process ("administrative exemptions") will likely be overbroad and will become anachronistic. Administrative exemptions are established and tailored to specific facts and conditions that warrant the creation of that particular exemption at that time. As technologies and user experience evolve, some exemptions may become unnecessary and others may require modification. A fixed statutory exemption, however, either would have to be so broad as to the sweep in conduct and products that are not the focus of the basis for the exemption or would be focused on conduct and products that will not be relevant in a few years. The administrative exemptions are more responsive to changing circumstances and technologies and can be more precisely focused on the specific needs as those evolve over time.

That said, this particular administrative exemption appears to have been an exception to the general point made just above in that it may sweep in conduct and products beyond the specific need demonstrated in the rulemaking process. It deviated from the record evidence relating to voting machines and established an exemption for any device or machine primarily designed for use by individual consumers ("consumer products"). This overly broad exemption exemplifies the value in establishing an exemption tailored to record evidence. As currently drafted, some might improperly read the exemption as being broad enough to permit the "hack" of Blu-ray or DVD player software. The software that plays back a DVD or Blu-ray disc is a computer program, whether included in a stand-alone consumer electronics product or provided

as an application running on a consumer computer. To be clear, DVD CCA and AACS LA do not believe the exemption applies to computer programs designed to control access to audiovisual works, as opposed to computer programs. But given the arguments made unsuccessfully in the past by those defendants seeking to justify hacking of CSS, as highlighted below, it would not be surprising to see some argue that the plain language of the exemption should be read to include such products even though there is no record evidence supporting this interpretation or indicating that the Librarian intended an additional exemption for the circumvention of CSS or AACS. Consequently, DVD CCA and AACS LA strongly object to this specific exemption becoming a statutory exemption.

b. The exemption for security testing under section 1201(j) is limited to activities undertaken “with the authorization of the owner or operator of [the] computer, computer system, or computer network.”²² In the 2015 rulemaking, the Register noted that in some cases “it may be difficult to identify the relevant owner” for purposes of this requirement and that “it may not be feasible to obtain authorization even where there is an identifiable owner.”²³ Echoing those concerns, one group of commenters argued that the authorization requirement should be eliminated, while another urged Congress to provide greater clarity in situations involving multiple owners. Please assess whether legislation may be appropriate in this area and discuss any specific legislative proposals that you believe should be considered.

c. Section 1201(j) provides a two factor framework to determine whether a person qualifies for the security testing exemption.²⁴ In the 2015 rulemaking, the Register noted that these factors “would appear to be of uncertain application to at least some” security research activities.²⁵ Some commenters advocated the removal of one or both of these factors from the statute.²⁶ Please assess the advisability of such changes, or discuss any other specific legislative proposals you believe should be considered.

d. The exemption for encryption research in section 1201(g) is similarly limited to activities qualifying under a four-factor framework that includes making “a good faith effort to obtain authorization” before the circumvention.²⁷ In the 2015 rulemaking, the Register noted that meeting these requirements “may not always be feasible” for researchers.²⁸ Please assess whether legislation may be appropriate in this area and discuss any specific legislative proposals that you believe should be considered.

e. Section 1201(f) permits circumvention for the “sole purpose” of identifying and analyzing elements of computer programs necessary to achieve interoperability.²⁹ In the 2015 rulemaking, the Register noted that “section 1201(f)(1) is limited to circumvention solely for the identification and analysis of program elements necessary for interoperability, and does not

address circumvention after that analysis has been performed.’’³⁰ Please assess whether legislation may be appropriate in this area and discuss any specific legislative proposals that you believe should be considered.

RESPONSE TO PARAGRAPHS B, C, D, AND E

DVD CCA and AACCS LA object to relaxing any of the requirements for these statutory exemptions. DVD CCA was involved in the first action under the DMCA against defendants, who claimed that their circumvention was intended to permit “security research,” “security testing,” “encryption research,” and “interoperability,” whereas their actual intent was to provide a circumvention tool for mass use to defeat the technology, not to actually do the exempted activities. *See Universal City Studios, Inc. v. Reimerdes*, 111 F. Supp.2d 294, 319 (S.D.N.Y. 2000). In that case, the defendants’ efforts to claim application of these exemptions were rebuffed, *see Reimerdes*, 111 F. Supp.2d. at 321-22, but under the proposed revisions that might not have been the case. In our view, the statutory requirements have made it actually easier for courts to resolve such arguments. *See id. at 321-22*. DVD CCA and AACCS LA also remain open to the possibility of licensing any reasonable non-infringing use such as security research, security testing, encryption research, and interoperability. Consequently, there is no reason to relax these requirements.

3. Anti-Trafficking Provisions

The Office is interested in receiving additional views on this topic, and specifically invites comment on the following issues:

a. A few parties argued that section 1201 contains an implied right permitting a beneficiary of a statutory or administrative exemption to make a tool for his or her own use in engaging in the permitted circumvention. What are commenters' views regarding this interpretation of the statute? To what extent, if any, does the statutory prohibition on the “manufacture” of circumvention tools affect the analysis? ^[31] If such a right is not currently implied, or the question is uncertain, should Congress consider amending the statute to expressly permit such activity, while maintaining the prohibition against trafficking in such tools?

RESPONSE

DVD CCA and AACS LA are unaware of any case or incident where this question has actually been disputed or where a potential user of an exemption has been unable to obtain the tool he or she needed, at least insofar as exemptions applicable to CSS and AACS technologies are concerned.

On the other hand, as DVD CCA and AACS LA explained in our earlier comments, the anti-trafficking prohibitions have been crucial to the efforts to create a stable market for the distribution of copyrighted movies on DVDs and Blu-ray discs. Enforcement efforts rely on the statutory prohibitions to counter those parties who would otherwise enable large scale circumvention for non-exempted uses, including those parties who would manufacture a circumvention product for the broader marketplace, such as 321 Studios and DVDFab, and those parties who would traffic in circumvention tools, such as DeCSS. Thus, the existing language of the statute is wholly consistent with the real-world experience of DVD CCA and AACS LA in enforcing the anti-trafficking prohibitions. Put another way, the concerns raised by the instant question are meritless, and any proposal would be a solution looking for a problem.

Finally, DVD CCA and AACS LA have previously objected to any legislation because any potential benefit is not worth the risk of altering the framework that supports the digital marketplace. The concern is that a maker of a circumvention tool or device would claim that the purpose of its tool was to support users of an exemption, complicating the ability of DVD CCA, AACS LA or other proprietors of a technological protection measure, or holders of copyrights protected by a technological protection measure, to block circumvention tools and devices in legal actions.

b. Some parties suggested that, in certain circumstances, third-party assistance may fall outside the scope of the anti-trafficking provisions and therefore may be permissible under current law. What are commenters' views regarding this interpretation of the statute? Are there forms of third-party assistance that do not qualify as a "service" within the meaning of sections 1201(a)(2) and 1201(b)(1)? If so, what considerations are relevant to this analysis?

RESPONSE

The pressure to enable third party assistance stems from the expansion of section 1201 into areas beyond the copyright industries. *See, e.g.*, 1201 Rulemaking, Recommendation at 247 (2015) (“[S]ome consumers may find it challenging to circumvent TPMs protecting the computer programs that control the functioning of their vehicles themselves.”). DVD CCA and AACS LA remain concerned that in attempting to address such a concern, the Librarian (or Congress if the change is made legislatively) should not “throw the baby out with the bath water,” or in this case, undermine the basic protections for core copyright interests.

In relation to the exemptions related to core copyrighted works, the Librarian has occasionally addressed a similar issue, but in each case in a narrow and focused manner. For example, the education exemptions have permitted audio visual or library staff to perform the circumvention even though they would do so on behalf of the professors or classroom teachers (i.e., on behalf of another). While this example granted third party assistance relief from section 1201(a), the prohibitions under section 1201(a)(2) and 1201(b) remained in place and more importantly, if the activity conducted under the auspices of the exemption proved to be intolerable, then copyright owners could still avail themselves of the anti-trafficking provisions to mitigate against any resulting harm. To date, because these exemptions were narrowly tailored to facilitate a specific non-infringing use, including who would be qualified to provide circumvention assistance, the rulemaking has served as a fail-safe without removing the underpinnings of the digital marketplace.

Finally, (and also potentially relevant to the prior question in paragraph a)., both DVD CCA and AACS LA have stated their willingness to work with the relevant parties to license specific tools to facilitate exemptions that the Librarian has granted (or to include such licensed tools in the context of the actual grant of an exemption). Licensed tools could be accommodated

in the same way that exemptions for screen capture technology were included in some of the audiovisual-related exemptions, permitting the use of technology in the marketplace to facilitate the act of circumvention to the extent that there is a concern that the facilitating technology is itself circumventing. Similarly, even if the rulemaking is unable to accommodate the requisite third party assistance, DVD CCA and AACS LA could issue a license permitting third parties to provide circumvention assistance so long as that assistance is reasonable.

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Respectfully submitted,

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